Few prisons separate men and women in the daytime. In some counties the gaol is also the bridewell: in others those prisons are contiguous, and the courtyard common. There the petty offender is committed for instruction to the most profligate. In some gaols you see (and who can see it without sorrow) boys of twelve or fourteen eagerly listening to the stories told by practised and experienced criminals, of their adventures, successes, stratagems, and escapes.

I must here add, that in some few gaols are confined idiots and lunatics. These serve for sport to idle visitants at assizes, and other times of general resort. Many of the bridewells are crowded and offensive, because the rooms which were designed for prisoners are occupied by the insane.[1] Where these are not kept separate, they disturb and terrify other prisoners. No care is taken of them, although it is probable that by medicines, and proper regimen, some of them might be restored to their senses, and to usefulness in life.

I am ready to think, that none who give credit to what is contained in the foregoing pages, will wonder at the havoc made by the gaol-fever. From my own observations in 1773, 1774, and 1775, I was fully convinced that many more prisoners were destroyed by it, than were put to death by all the public executions in the kingdom.[2] This frequent effect of confinement in prison seems generally understood, and shows how full of emphatical meaning is the curse of a severe creditor, who

[1] See Irish Act, the third of George III, p. 478, where such persons are required to be kept separate.

[2] I have in my possession a large copper-plate, first published in 1772, by Sir Stephen Theodore Janssen, showing the number of malefactors executed in London for the twenty-three preceding years; and the crimes for which they suffered. I will give an abridgment of it in a table at the end of the book. In it will be seen, that the total number of executions in London for those twenty-three years, was 678; the annual average is between twenty-nine and thirty. I leave to others the discussion of the questions, whether those executions were too numerous? whether all the crimes for which they were inflicted, were deserving of death? [3] An ingenious writer, Mr. Eden, *Principles of Penal Law*, p. 306, observes that "the accumulation of sanguinary laws is the worst distemper of a state. Let it not be supposed, that the extirpation of mankind is the chief object of legislation."—And it may be left to any one to judge, whether, including debtors and petty offenders, the number of those that died in the several London prisons of the gaol-fever, does not exceed the number of those that were executed annually during that time. I have not the number of executions in all the counties, but am well assured it falls still much shorter of the number that perished in prisons.

[3] A contemporary of Howard's estimates that there were then 176 capital offences without benefit of clergy, and 65 within benefit, 241 in all. In the former category were included stealing linen from bleaching grounds, and stealing privately from the pocket to the value of twelve pence.—[Ed.

pronounces his debtor's doom to rot in gaol. I believe I have learned the full import of this sentence, from the vast numbers who, to my certain knowledge, and some of them before my eyes, have perished by the gaol-fever.

But the mischief is not confined to prisons. Not to mention now the number of sailors, and of families in America, that have been infected by transports;—multitudes caught the distemper by going to their relatives and acquaintance in the gaols: many others from prisoners discharged; and not a few in the courts of judicature.

In *Baker's Chronicle*, page 353, that historian mentioning the assize held in Oxford Castle 1577 (called from its fatal consequence the black assize) informs us, that "all who were present died within forty hours: the lord chief baron, the sheriff, and about three hundred more." Lord Chancellor Bacon ascribes this to a disease brought into court by the prisoners; and Dr. Mead is of the same opinion.

The first of these two authors Lord Bacon, observes, that, "the most pernicious infection next the plague, is the smell of a jail; when the prisoners have been long and close and nastily kept: whereof we have had, in our time, experience twice or thrice; when both the judges that sat upon the jail, and numbers of those who attended the business, or were present, sickened and died." [1]

At the Lent assize in Taunton, 1730, some prisoners who were brought thither from Ivelchester gaol, infected the court; and Lord Chief Baron Pengelly; Sir James Sheppard, sergeant; John Pigot, Esq., sheriff, and some hundreds besides, died of the gaol-distemper. At Axminster, a little town in Devonshire, a prisoner discharged from Exeter gaol in 1755, infected his family with that disease; of which two of them died; and many others in that town afterwards.—The numbers that were carried off by the same malady in London in 1750, two judges, the lord mayor, one alderman, and many of inferior rank, are too well known to need the mentioning further particulars.

Sir John Pringle observes, that "jails have often been the cause of malignant fevers"; and he informs us, that in the late rebellion in Scotland, above two hundred men of one regiment were infected with the jail-fever, by some deserters brought from prisons in England.

Dr. Lind, physician to the Royal Hospital at Haslar, near Portsmouth, showed me in one of the wards a number of sailors

[1] See Plot's *History of Oxfordshire*, p. 25.